



Our ref: IM-72807

Land of the Ngunnawal people
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13 May 2025

Dear Interested Party,

Re: ACCC seeking your views: Igneo's proposed acquisition of Benedict Recycling

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on the proposed acquisition of Benedict Recycling Pty Ltd (**Benedict Recycling**) by IWS Group Asset Co Pty Ltd as trustee of the IWS Group Asset Trust (**IWS**), an entity managed by Igneo Infrastructure Partners (**Igneo**) (the **proposed acquisition**).

IWS, through its subsidiaries, provides waste management services in New South Wales, South Australia and Western Australia. Benedict Recycling is a waste management company that operates various waste management, greenfield and landfill sites in greater Sydney, Newcastle and NSW Central Coast. Further details are provided at **Attachment A**.

The ACCC's investigation is focused on the impact on competition. In particular, we are seeking your views on whether the proposed acquisition would likely:

- reduce competition for waste collection and processing services, including specifically building and demolition (**B&D**) waste services, to customers in Newcastle and/or the Hunter Valley Region of NSW; and
- lead to higher prices and/or lower service quality of waste collection and processing services in Newcastle and/or the Hunter Valley Region of NSW.

Further issues you may wish to address are set out in **Attachment B**.

This matter is public and you can forward this letter to anybody who may be interested.

The legal test which the ACCC applies in considering the proposed acquisition is in section 50 of the *Competition and Consumer Act 2010*. Section 50 prohibits acquisitions that are likely to have the effect of substantially lessening competition in a market.

Please provide your response by **28 May 2025** via email to mergers@accc.gov.au with the title: *Submission re: Igneo / Benedict Recycling*. If you require more time to respond, please let us know.

If you would like to arrange a time to discuss the matter with ACCC officers, or have any questions about this letter, please contact mergers@accc.gov.au.

Updates regarding the ACCC's investigation will be available on the ACCC's Public Mergers Register at ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC will not publish submissions regarding the proposed acquisition. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the CCA. Where the ACCC is required to disclose confidential information, the ACCC will notify you in advance where possible so that you may have an opportunity to be heard. Therefore, if the information provided to the ACCC is of a confidential nature, please indicate as such. Our Informal Merger Review Process Guidelines contain more information on confidentiality

Yours sincerely

A handwritten signature in blue ink, appearing to read 'Morag Bond', is positioned above the printed name.

Morag Bond

General Manager

Merger Investigations

Attachment A

The acquirer – Igneo

Igneo is an infrastructure asset management business and part of the First Sentier Investors Group. Igneo provides waste management services through IWS, which is ultimately owned by the First Sentier Investors (Australia) RE Ltd as trustee for Global Diversified Infrastructure Fund (Active) (**GDIF**). GDIF is managed by entities forming part of Igneo. IWS also owns Recycle Central Group (**Recycle Central**) and Eco Resources Group.

IWS (and its subsidiaries) provide a range of waste management services including resource recovery, commercial composting, and disposal. IWS operates in Western Australia (through Eco Resources Group), South Australia and NSW (through Recycle Central).

Recycle Central is a subsidiary of IWS and is responsible for all IWS operations in Newcastle. Recycle Central's services include waste collection, processing and recovery of B&D, and commercial and industrial (**C&I**) waste. Recycle Central operates two waste processing facilities in the Newcastle and Hunter Valley Region:

- the Kurri Kurri waste management station located at 8 Styles Street, Kurri Kurri NSW 2327 (**Kurri Kurri station**), and
- the Cardiff waste transfer station located at 3A Pennant Street, Cardiff NSW 2285 (**Cardiff transfer station**). The Cardiff transfer station is the only transfer station in Newcastle.

The target – Benedict Recycling

Benedict Recycling provides landfill, processing and recovery services for B&D, C&I, household and green waste across NSW.

Benedict Recycling operates and/or has an ownership interest in waste management, greenfield and landfill sites in Bowral, Chipping Norton, Newcastle, Unanderra, Smeaton Grange and Belrose. The Bowral landfill site is not included in the proposed acquisition.

In Newcastle, Benedict Recycling operates the Newcastle Waste Management Recycling Centre, 1A McIntosh Drive, Mayfield West NSW 2304 (**Newcastle Recycling Centre**).

Benedict Recycling also has interests in other, currently non-operational sites in NSW, including a waste management and recycling centre in Girraween and a greenfield waste recycling and transfer centre in Penrith.

Attachment B

- 1) Provide a brief description of your business or organisation.
- 2) Outline the reasons for your interest in the proposed acquisition, including any commercial relationship(s) with **Igneo** (including IWS and Recycle Central) or **Benedict Recycling**.
- 3) Describe how closely Recycle Central and Benedict Recycling compete. Include a description of the services in which they compete.
- 4) Identify the main competitors to Recycle Central and/or Benedict Recycling in the supply of B&D waste processing services.

The questions below are divided into questions for customers and competitors, but you are welcome to comment on any question/s in any category.

Questions for customers

- 5) Identify and describe:
 - a) the types of B&D waste management services you use, and whether you require waste collection in addition to waste processing services
 - b) the waste processing facilities at which you currently deposit waste in the Newcastle and/or Hunter Valley Region
 - c) the volume of waste you deposit at each processing facility annually and the price you are charged to do so, describing the relevant waste type and service, and
 - d) how you obtain these services (i.e. via a competitive tender, on an ad hoc basis, or through other processes) and if applicable, describe existing contractual arrangements (e.g. term of contract).
- 6) For each of the waste management services that you procure in the Newcastle and/or Hunter Valley Region, identify the alternative suppliers capable of servicing your organisation's needs, including any differences in what they can offer with regard to pricing, service, quality and geographic location.
- 7) Identify the furthest distance you would transport B&D waste for processing.
- 8) Outline the key factors you consider when choosing a waste processing facility in the Newcastle and/or Hunter Valley Region (such as price, location, service (e.g. opening hours))
- 9) Describe the extent to which you could switch between waste processing facilities in response to a price increase and/or decrease in service levels.

Questions for competitors

- 10) Identify and describe the types of waste management services you offer in the Newcastle and/or Hunter Valley Region.
- 11) If you operate a B&D waste processing facility within the Newcastle and/or Hunter region, please provide:
 - a) the volume of B&D waste you received in the last financial year

- b) the annual operating capacity of each waste processing facility, and
- c) whether the facility is classed as a transfer station.

12) List your closest competitors. Please indicate whether you compete for your customers via competitive tenders and/or individual price negotiations, and what factors you compete on beyond pricing.

13) If you supply waste collection services in Newcastle and/or the Hunter Valley Region, please list the key geographical areas where this waste is collected.

14) Outline the process, cost and time involved in establishing different types of new waste management facilities (e.g. transfer station, processing facility) in Newcastle and/or the Hunter Valley Region, including regulatory requirements such as licences and environmental approvals.

Other

15) Provide any additional information or comments that you consider relevant to the ACCC's consideration of the proposed acquisition.